

# BUILDER LISTING & COMMISSION AGREEMENT

*(Website Listing Terms & Conditions for Builders/Developers)*

This Builder Listing & Commission Agreement ("Agreement") is entered into between:

XEVOTECH PRIVATE LIMITED, a company having its registered office at [Company Address] (hereinafter referred to as the "Company", which expression shall, unless repugnant to the context, include its successors and permitted assigns);

AND

[BUILDER NAME], a builder/developer/real estate company having its registered office / principal place of business at [Builder Address] (hereinafter referred to as the "Builder", which expression shall, unless repugnant to the context, include its successors and permitted assigns).

The Company and the Builder are hereinafter individually referred to as a "Party" and collectively as the "Parties".

## 1. RECITALS

A. The Company owns and operates the website [Website Name/URL] ("Platform"), through which prospective buyers/end-users ("Users") are able to view and enquire about residential/commercial properties/projects listed by builders and developers.

B. The Builder wishes to list its project(s)/property/properties ("Property" or "Listed Property") on the Platform for the purpose of marketing the same to Users.

C. The Company has agreed to list the Builder's Property on the Platform, and the Builder has agreed to pay the Company a commission on Deals sourced through the Platform, subject to the terms and conditions set out in this Agreement.

D. By clicking "I Agree" / "Approve" or by submitting a Property for listing on the Platform, the Builder confirms that it has read, understood, and irrevocably accepts all the terms and conditions contained in this Agreement, which shall be binding on the Builder as if signed in physical form.

## 2. DEFINITIONS

- "Deal" means any booking, sale, lease, rental, or other transaction in respect of the Listed Property entered into by a User who was introduced, referred, or directed to the Builder (directly or indirectly) through the Platform, including enquiries that convert into a transaction within the Tail Period defined in Clause 6.4.
- "Commission" means the percentage/amount of the sale/lease consideration payable by the Builder to the Company in respect of each Deal, as specified in Clause 6 or in the applicable listing/order form.
- "Listing" means the display of the Builder's Property, including its description, images, price, specifications, and related information, on the Platform.
- "Confidential Information" has the meaning assigned in Clause 10.

## 3. BUILDER'S WARRANTIES AND REPRESENTATIONS — OWNERSHIP AND TITLE

The Builder represents and warrants to the Company, as a continuing warranty for so long as the Property remains listed on the Platform, that:

- 3.1 The Builder is the sole and absolute owner and/or the duly authorised developer of the Property listed on the Platform, and holds clear, marketable, and unencumbered title to the same, free from any dispute, litigation, attachment, lien, mortgage, or third-party claim, except as expressly disclosed in writing to the Company.

- 3.2 The Builder has obtained, or will obtain prior to sale/possession, all statutory approvals, sanctions, permissions, and registrations required under applicable law (including but not limited to RERA registration, if applicable, building plan sanctions, environmental clearances, and completion/occupancy certificates) for the development, marketing, and sale of the Property.
- 3.3 The Builder has full right, power, and authority to list the Property on the Platform and to enter into Deals with Users in respect thereof, without any restriction under any agreement, court order, or law.
- 3.4 The Builder shall promptly notify the Company in writing of any change in the ownership, title, approval status, or legal status of the Property, and shall withdraw the Listing immediately if it ceases to hold clear title or valid authorisation.

## **4. NO MISREPRESENTATION / NO MISLEADING CONDUCT**

The Builder further represents, warrants, and undertakes that:

- 4.1 All information, descriptions, images, floor plans, specifications, pricing, possession timelines, and other particulars ('Listing Content') provided by the Builder for the Listing are true, accurate, complete, and not misleading in any respect.
- 4.2 The Builder shall not engage in any false, deceptive, misleading, or unfair trade practice in connection with the Listing or in its dealings with any User referred through the Platform, including but not limited to misrepresentation of carpet/built-up area, amenities, approvals, price, discounts, possession date, or project status.
- 4.3 The Builder shall not make any unauthorised, defamatory, unlawful, or fraudulent statement regarding the Company, the Platform, or any User, and shall comply with all applicable laws, including consumer protection and real estate regulatory laws, in connection with the Listing and any resulting Deal.
- 4.4 In the event any misrepresentation, misleading conduct, or unlawful practice by the Builder is identified, the Company shall be entitled, without prejudice to its other rights, to immediately suspend or remove the Listing and to claim indemnification under Clause 11.

## **5. BUILDER'S UNDERTAKING TO WORK EXCLUSIVELY THROUGH / COOPERATE WITH THE COMPANY ON REFERRED DEALS**

- 5.1 The Builder agrees and confirms that it is ready and willing to work with the Company on the terms of this Agreement and to honour all Deals originating from Users introduced through the Platform.
- 5.2 The Builder shall not, directly or indirectly, circumvent, bypass, or avoid payment of Commission to the Company by directing a User introduced through the Platform to complete a Deal outside the knowledge of the Company, through a different sales channel, or through a third party, once such User has been identified as having originated from the Platform.
- 5.3 The Builder shall, in good faith, provide timely updates to the Company on the status of Users referred through the Platform (enquiry, site visit, negotiation, booking, closure), to enable accurate Commission tracking.
- 5.4 Nothing in this Clause shall be construed as restricting the Builder from independently marketing the Property through its own channels to Users who did not originate from the Platform.

## **6. COMMISSION**

- 6.1 In consideration of the services provided by the Company, the Builder shall pay to the Company a commission equal to [ ]% (\_\_\_ percent) of the total sale/lease consideration (exclusive of applicable taxes/GST, which shall be additionally payable) for every Deal concluded with a User introduced through the Platform ("Commission").

- 6.2 The applicable Commission percentage for a specific Listing shall be as agreed between the Parties at the time of listing/onboarding and confirmed in writing (including through the Platform's online listing/approval process), and shall form part of this Agreement.
- 6.3 The Commission shall become due and payable within [ ] days of the earlier of: (a) execution of the Agreement for Sale/Lease/Allotment Letter with the User; or (b) receipt of booking amount/token amount from the User.
- 6.4 Tail Period: If a User introduced through the Platform completes a Deal with the Builder within [ ] days/months of the last recorded interaction through the Platform, such Deal shall be deemed to have originated from the Platform and Commission shall be payable accordingly, even if the Listing has since expired or been withdrawn.
- 6.5 Commission once accrued shall not be reduced, waived, or adjusted on account of any subsequent discount, cancellation of booking after Commission has become due, or renegotiation between the Builder and the User, save in the case of a bona fide cancellation and full refund to the User prior to payment of Commission.
- 6.6 The Builder shall raise no objection to invoices issued by the Company for Commission and shall make payment within the timelines specified in the invoice/Clause 6.3, failing which interest at [ ]% per month shall accrue on the overdue amount.

## 7. LISTING PROCESS AND ONLINE APPROVAL

- 7.1 At the time of submitting a Property for Listing on the Platform, the Builder shall be required to review and expressly accept (by way of an online checkbox/click-to-accept mechanism) the terms of this Agreement, including the warranties in Clauses 3 and 4, the undertaking in Clause 5, and the Commission terms in Clause 6.
- 7.2 Such online acceptance shall constitute valid and binding execution of this Agreement by the Builder for all purposes, including under applicable electronic contracting/IT laws.
- 7.3 The Company reserves the right to review, verify, edit, reject, or remove any Listing that does not comply with this Agreement or the Company's listing policies, at its sole discretion.

## 8. TERM AND TERMINATION

- 8.1 This Agreement shall commence on the date of online acceptance/execution and shall remain in force until terminated in accordance with this Clause.
- 8.2 Either Party may terminate this Agreement by giving [ ] days' prior written notice to the other Party.
- 8.3 The Company may terminate this Agreement or suspend/remove a Listing with immediate effect, without notice, in case of breach of Clauses 3, 4, or 5 by the Builder, or on account of any regulatory action, complaint, or fraud concerning the Builder or the Property.
- 8.4 Termination of this Agreement shall not affect the Builder's obligation to pay Commission on Deals that originated from the Platform prior to, or during the Tail Period after, such termination.

## 9. LIMITATION OF LIABILITY

The Company acts solely as a listing and lead-generation platform connecting Builders with Users. The Company is not a party to, and assumes no liability in respect of, any Deal, Agreement for Sale, or transaction entered into between the Builder and any User. The Builder shall be solely responsible for the accuracy of the Listing Content and for its dealings with Users.

## 10. CONFIDENTIALITY

Each Party shall keep confidential all non-public business, technical, and commercial information disclosed by the other Party in connection with this Agreement ("Confidential Information") and shall not disclose the same to any third party, except as required by law or for the performance of this Agreement.

## 11. INDEMNITY

The Builder shall indemnify and keep indemnified the Company, its directors, officers, and employees against any and all claims, losses, damages, penalties, and expenses (including reasonable legal fees) arising out of or in connection with: (a) any breach of the warranties in Clauses 3 or 4; (b) any misrepresentation or misleading conduct by the Builder; or (c) any dispute between the Builder and a User relating to the Property or a Deal.

## 12. GOVERNING LAW AND DISPUTE RESOLUTION

This Agreement shall be governed by the laws of India. Any dispute arising out of or in connection with this Agreement shall first be sought to be resolved amicably, failing which it shall be referred to arbitration under the Arbitration and Conciliation Act, 1996, to be conducted by a sole arbitrator appointed by the Company, with the seat and venue of arbitration at [City], and the language of arbitration being English. Subject to the above, the courts at [City] shall have exclusive jurisdiction.

## 13. MISCELLANEOUS

- 13.1 Entire Agreement: This Agreement, along with the applicable listing/order form, constitutes the entire understanding between the Parties in respect of the Listing and supersedes all prior discussions.
- 13.2 Amendment: The Company may update these terms from time to time by posting the revised terms on the Platform; continued use of the Platform/Listing after such update constitutes acceptance by the Builder.
- 13.3 Assignment: The Builder shall not assign or transfer its rights or obligations under this Agreement without the prior written consent of the Company.
- 13.4 Severability: If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall continue in full force and effect.
- 13.5 Notices: All notices under this Agreement shall be in writing and sent to the addresses/email IDs specified by the Parties, or through the Platform's registered communication channel.

## ACCEPTANCE

By clicking "I Agree" / "Approve & List" on the Platform, the Builder confirms that it has read and understood this Agreement in full and agrees to be bound by all its terms and conditions, including the warranties, undertakings, and Commission obligations set out above.

### For XEVOTECH PRIVATE LIMITED

Name: PAVAN NAMALDAR

Designation: Director

### For [BUILDER NAME]

Name: \_\_\_\_\_

Designation: \_\_\_\_\_

Date: \_\_\_\_\_

*Note: This is a general-purpose draft for discussion and internal review. It should be reviewed and finalised by a qualified lawyer licensed in your jurisdiction before use, and adapted to your specific business model, applicable RERA rules, and state-specific stamp duty/registration requirements.*